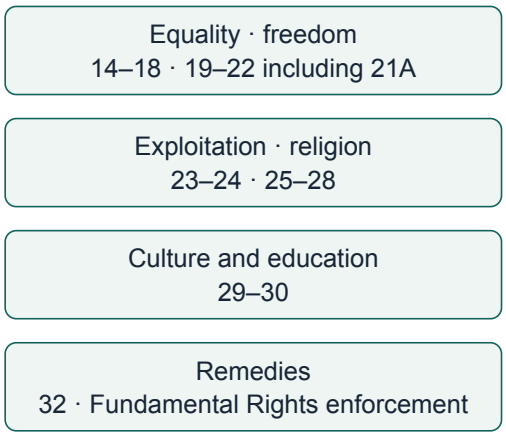
Fundamental Rights

1. Purpose, scope and six groups

- **Part III, 12–35; US Bill of Rights influence; "Magna Carta of India"**. Protect dignity, liberty, equality, minorities and political democracy; restrain arbitrary government and support rule of law. Magna Carta dates to **1215**; avoid calling it history's first-ever rights document.
- Six groups: **Equality 14–18; Freedom 19–22/21A; Against exploitation 23–24; Religion 25–28; Cultural/educational 29–30; Remedies 32**.
- Originally seven: **property under 19(1)(f)/31**; **44th Amendment 1978** removed it from Fundamental Rights; **300A, Part XII** now protects property as a constitutional legal right.
- Rights are **justiciable**, contain positive/negative obligations and have provision-specific limits. Some protect citizens, others all persons; legal persons can claim compatible rights, but a company is not itself a citizen for Article 19.
- **15, 16, 19, 29** expressly protect citizens; **14, 20, 21, 23–28** generally protect persons. **21A:** children 6–14. Article **30** is not simply worded citizen-only; enemy-alien exclusions apply specifically, not to all rights indiscriminately.
- Rights bind the State; some expressly reach private conduct (**15(2), 17, 23, 24**). **Kaushal Kishor (2023)** also rejects a blanket claim that Articles 19/21 can never operate against private actors. Supreme Court
- Parliament can amend rights only through constitutional procedure and within **basic structure**; ordinary law can regulate within permitted limits, not simply repeal constitutional guarantees.



Six groups; property is now protected separately under 300A.

2. State and law: Articles 12–13

- **12—State includes:** Union Government/Parliament; State governments/legislatures; local authorities; other authorities. Instrumentality/agency analysis depends on control, functions and other judicial tests; neither every private body nor every government-linked organisation is automatically State.
- **13:** inconsistent laws void **to extent of inconsistency**. Includes legislation, ordinances, orders, rules, regulations, notifications, bye-laws and customs/usages with force of law.
- **Judicial review:** SC **32**, HC **226**. Article **13(4)** excludes Article 368 amendments from its ordinary-law rule, but amendments remain reviewable for **basic-structure damage**.

3. Equality: Article 14 and rule of law

- **Equality before law:** British influence, no special privilege/above-law status. **Equal protection:** American influence, like treatment in like circumstances. Negative restraint and positive equal treatment complement each other.
- **Reasonable classification requires intelligible differentia + rational nexus to the law's objective**. Unequals may require different treatment; Article 14 still governs that distinction. Arbitrary class legislation is forbidden.
- **Dicey:** absence of arbitrary power; equality before ordinary law; individual rights as foundation of Constitution. India's written Constitution supplies rights, so the third aspect is not adopted in the same form. **Rule of law is basic structure**.
- **361:** President/Governor personal constitutional immunities; no criminal proceedings/arrest during term; specified personal civil proceedings require **two months' notice**. Their actions/government decisions are not thereby beyond judicial review.
- **361A:** substantially true legislative-proceeding reports protected, with exceptions including **malice and secret sittings**. **105/194:** legislative speech/vote privileges; not blanket criminal immunity.
- Foreign sovereign/diplomatic/UN immunities depend on applicable law/treaties; Article **31C** supplies limited protection for qualifying 39(b)/(c) laws.

4. Article 15: prohibited discrimination and protective measures

- **15(1):** State cannot discriminate against citizens **only** on religion, race, caste, sex, place of birth. Other classifications remain subject to equality scrutiny; “only” does not authorise arbitrary discrimination.
- **15(2):** public access to shops, restaurants, hotels, entertainment and specified public-use wells/tanks/roads/resorts; reaches **private as well as State conduct**.
- **15(3):** special provisions for women/children. **15(4):** socially/educationally backward classes, SCs/STs—**1st Amendment 1951**.
- **15(5):** admissions measures including private aided/unaided institutions, **excluding Article 30 minority institutions—93rd Amendment 2005**. Central educational reservation legislation **2006**, OBC **27%**, upheld with creamy-layer exclusion **2008**.
- **15(6):** EWS measures/admission reservation **up to 10%**, additional to existing reservations; minority-institution exception; **103rd Amendment 2019**. **Janhit Abhiyan 2022:** amendment upheld **3:2**. SC account of majority ruling

5. OBC creamy layer and EWS criteria

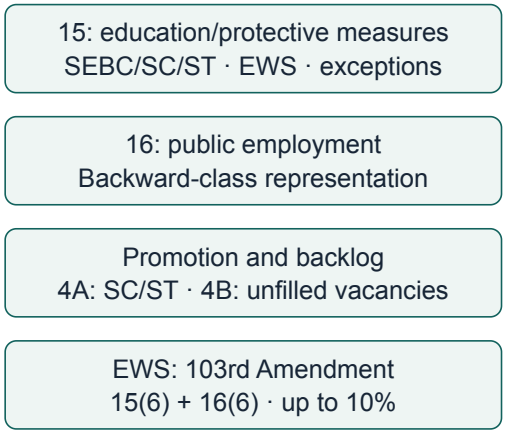
- **OBC creamy layer is not merely a universal income test**. Parental status/service rank, professional/business/land categories and prescribed income/wealth tests matter; Group A/B, equivalent posts and **Colonel/equivalent** cases have detailed conditions.
- Income-ceiling history: **₹1 lakh 1993; ₹2.5 lakh 2004; ₹4.5 lakh 2008; ₹6 lakh 2013; ₹8 lakh 2017**. Apply rules on income sources and parental status, not an undifferentiated salary total. Official ceiling notification
- **Central EWS scheme 2019:** persons outside SC/ST/OBC reservation coverage; family gross annual income **below ₹8 lakh**, including specified income sources in preceding financial year.

- Excluded if family owns **5+ acres agricultural land; 1,000+ sq ft residential flat; 100+ sq yd plot in notified municipality; 200+ sq yd plot elsewhere**, regardless of income. Aggregate property across locations.
- Family: applicant, parents, siblings **under 18**, spouse and children **under 18**. Scheme eligibility is administrative, distinct from constitutional text; State criteria can differ under applicable law.

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6. Article 16 and reservation chronology

- **16(1)–(2):** equal public-employment opportunity; prohibited grounds additionally include **descent/residence**. **16(3): Parliament** can prescribe specified residence requirements; **371D** arrangements for AP/Telangana are distinct.
- **16(4):** backward classes inadequately represented. **16(4A): SC/ST promotion reservation**, **77th 1995**; consequential seniority, **85th 2001**, retrospective **June 1995**. Enabling provisions remain subject to judicial conditions; not automatic compulsory reservation in every post.
- **16(4B):** separate treatment of backlog reserved vacancies—**81st 2000**. **16(5):** specified religious/denominational office qualifications. **16(6):** EWS up to **10%**, **103rd 2019**.
- **Kalelkar:** first Backward Classes Commission **1953**, report **1955**. **Mandal:** second Commission **1979**, report **1980**; identified **3,743 castes**, estimated **52%** population, recommended **27%** OBC jobs. These are historical estimates, not current census figures.
- **1990 V.P. Singh:** OBC quota implementation; **1991:** poorer-OBC preference and separate **10%** economic quota proposed.
- **Indra Sawhney 1992:** upheld 27% OBC reservation; exclude creamy layer; ordinary **50% ceiling**, extraordinary exceptions; no promotions under 16(4); carry-forward subject to then-law limits; permanent complaints body. Later constitutional provisions changed parts of that framework.
- **Ram Nandan committee 1993:** creamy-layer criteria. **NCBC statutory 1993 → constitutional 338B under 102nd 2018**; **105th 2021** clarified States' own backward-class identification powers.
- **76th 1994:** Tamil Nadu's **69%** reservation law in Ninth Schedule—**not absolute judicial-review immunity**. **82nd 2000:** 335 proviso permits specified SC/ST promotion qualifying-mark/evaluation relaxations.
- Chapter's central EWS scientific/technical exemption requires **all three**: grade above lowest Group A, recognised scientific/technical classification, and research/organisation/direction of research duties.



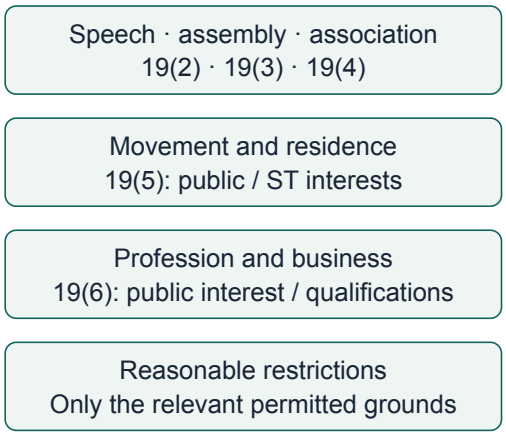
Each reservation route has its own text and legal conditions.

7. Articles 17–18: untouchability and titles

- **17:** untouchability abolished; enforceable against private conduct; statutory punishment. **Untouchability (Offences) Act 1955** → **Protection of Civil Rights Act 1955**, strengthened/renamed **1976**. Concerns historically caste-based disabilities, not every form of social avoidance.
- **PUDR 1982:** State must protect against private rights violations. Keep abolition distinct from the wider SC/ST atrocities-law framework.
- **18:** State cannot confer titles except military/academic distinctions; citizens cannot accept foreign-State titles. Foreigners in State office of profit/trust need President's consent for foreign titles; anyone in such office needs consent for specified foreign presents/emoluments/offices.
- **Balaji Raghavan 1995:** Bharat Ratna/Padma awards permissible; **do not use as name prefixes/suffixes**. These are honours, not hereditary nobility.
- Awards instituted **1954**, discontinued **1977**, revived **1980**; Padma interruptions **1978–79, 1993–97**. Chapter's Padma guideline: **120 annually**, excluding specified posthumous/foreign/NRI/OCI cases. Its Bharat Ratna “maximum three” should not be memorised as exceptionless: **five were conferred in 2024**. Official 2024 presentation, Advani presentation

8. Article 19: six freedoms and exact restriction grounds

- **Speech/expression, 19(1)(a)/19(2):** sovereignty/integrity; State security; friendly foreign relations; public order; decency/morality; contempt; defamation; incitement to offence—**eight grounds**.
- **Peaceful unarmed assembly, (b)/(3):** sovereignty/integrity, public order. No guaranteed right to violent obstruction or strike; reasonable regulation of time/place applies.
- **Association/unions/cooperatives, (c)/(4):** sovereignty/integrity, public order, morality. Includes joining/not joining; recognition, successful bargaining or strike not automatically guaranteed. Cooperatives added by **97th Amendment**.
- **Movement/residence, (d)/(e)/(5):** general-public interest, Scheduled Tribe interests. Internal movement under 19; foreign travel under **21**.
- **Profession/occupation/trade/business, (g)/(6):** general-public interest, qualifications and permitted State monopolies; unlawful/harmful activities may be regulated/prohibited.
- **1st Amendment 1951:** speech grounds including friendly relations/public order/incitement and State-monopoly protection; **16th 1963:** sovereignty/integrity additions. **19(1)(f) property omitted by 44th**.
- Speech covers press/circulation, commercial speech, silence, access to relevant information/candidate antecedents, broadcasting, reply, gender expression, national-flag expression, lawful protest, film/social-media communication, subject to constitutional limits. Telephone privacy also engages **21**; pre-censorship principles differ by medium.
- **Anuradha Bhasin 2020:** expression/business through internet protected; restrictions proportionate, indefinite suspension impermissible. This is not an unrestricted right to every internet facility.
- Old references **CrPC 144/IPC 141** are historical: corresponding current provisions are **BNSS 163/BNS 189**, operational **1 July 2024**. An assembly of five is not unlawful merely because of its size; statutory common object matters.
- Health/area restrictions cited in the chapter are case-specific; no general licence to discriminate against persons with HIV or other vulnerable groups.



Use the correct restriction clause for each freedom.

9. Article 20: three criminal-law safeguards

- **No retrospective criminal conviction/heavier penalty:** law at time of offence controls; beneficial change may operate under law. Not a general bar to retrospective civil/tax legislation.
- **No double jeopardy:** prosecuted **and punished** again for the same offence; departmental action is not automatically prior criminal prosecution. Statutory protections may be wider.
- **No compelled self-incrimination:** accused cannot be forced to provide incriminating testimonial evidence. Fingerprints, physical samples or specimen signatures are not automatically testimonial confession; privacy/procedural safeguards still apply.
- Applies to persons including foreigners; **20 and 21 enforcement cannot be suspended under 359**.

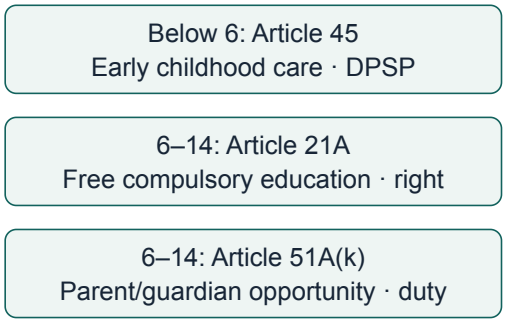
10. Article 21: dignity and fair procedure

- Life/personal liberty can be deprived only by **procedure established by law**. **A.K. Gopalan 1950:** narrow approach; **Maneka Gandhi 1978:** procedure must be **just, fair, reasonable**, consistent with **14/19/21**.
- Life includes dignity, not mere survival. Rights recognised through cases have context and lawful limits; not every desirable benefit is an unconditional individual entitlement.
- **Dignity/welfare:** livelihood, shelter, health/emergency care, educational opportunity, family-pension/insurance interests, social/economic justice, fair opportunity, women's dignity, choice of partner, decent burial/cremation.
- **Fair justice/detention:** legal aid, speedy/fair trial, appeal safeguards, humane prisoner necessities; protection against bonded labour, custody abuse, unjustified handcuffs/bar fetters/solitary confinement, inhuman treatment, delayed execution/public hanging.
- **Personal autonomy/information:** privacy, reputation, foreign travel, information, protection against unjust displacement from a State. **Marriage choice ≠ automatic judicial recognition of every marital status**.
- **Environment/living conditions:** clean air/water, protection from hazardous industry/noise, sleep, sustainable development, access-road issues in context, protection against adverse climate effects (**M.K. Ranjitsinh 2024**, Articles 14/21).
- **Die with dignity:** lawful passive-euthanasia/advance-directive framework, not general right to suicide or active killing.

- Case map: **Satwant Singh 1967—foreign travel; Hoskot 1978—legal aid; Hussainara 1979—speedy trial; Francis Coralie 1981—dignity/prisoner essentials; Sheela Barse 1983—custody safeguards; RLEK 1985—environment; Olga Tellis 1985—livelihood; Parmanand Katara 1989—emergency medical aid; Shantistar 1990—shelter; Puttaswamy 2017—privacy; Common Cause 2018—dying with dignity**.

11. Education: 21A, 45 and 51A(k)

- **86th Amendment 2002: 21A—free compulsory education 6–14**; revised **45—early childhood care/education below 6**; **51A(k)—parent/guardian educational opportunity, 6–14**.
- **RTE Act 2009**, operative with relevant amendment provisions **1 April 2010**; elementary education with prescribed quality/norms, not unlimited free higher/professional education.
- **Mohini Jain 1992 → Unni Krishnan 1993:** education under 21, with economic-capacity qualification beyond childhood; later 21A gives express age-specific guarantee.

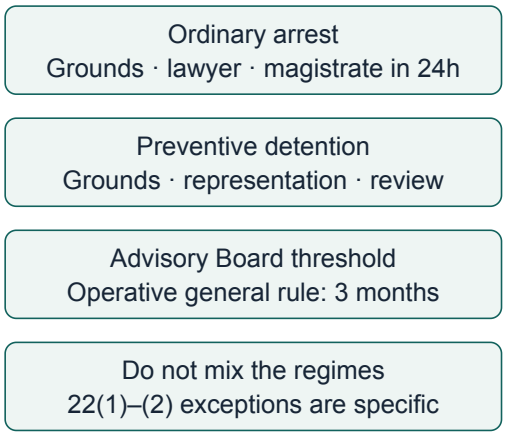


The 86th Amendment connects policy, right and duty.

12. Article 22: ordinary arrest versus preventive detention

- **Ordinary arrest:** informed grounds; consult/defended by lawyer; magistrate within **24 hours excluding journey**; further custody needs magistrate authority. Article 22(1)–(2) exceptions: enemy aliens and preventive detention.
- **Punitive detention:** criminal process/punishment for offence; **preventive:** precautionary detention to prevent specified future harmful activity, under law—not punishment after conviction.
- Preventive safeguards: prompt grounds, earliest representation opportunity; public-interest facts may be withheld under **22(6)**.
- **Three months** without sufficient-cause Advisory Board report is the general constitutional threshold, with **22(7)** parliamentary exceptions/maximum-duration machinery. Board members must have prescribed HC judicial qualifications; not necessarily all serving judges.
- **44th Amendment's two-month change was not commenced**; do not substitute it for operative three months.
- Union exclusive lawmaking: defence, foreign affairs, security of India; concurrent: State security, public order, essential supplies/services.
- Historical laws: **Preventive Detention Act 1950 expired 1969; MISA 1971 repealed 1978; TADA lapsed 1995; POTA 2002 repealed 2004**. Relevant preventive statutes include **COFEPOSA 1974, NSA 1980, essential-supplies/blackmarketing Act 1980, PITNDPS 1988**.

- **UAPA 1967** is principally penal/counterterrorism legislation with special custody/bail rules; do not equate all UAPA custody with constitutional preventive detention. Chapter's “no other democracy” claim is too absolute.



Preventive safeguards differ from ordinary criminal-arrest safeguards.

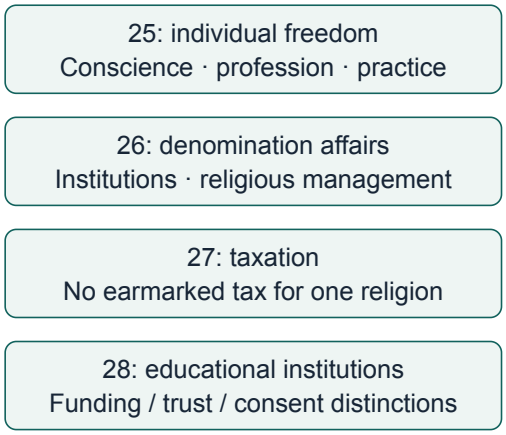
13. Against exploitation: 23–24

- **23:** trafficking, **begar** (unpaid forced work), bonded/similar forced labour prohibited against State/private actors. Economic compulsion, including legally relevant below-minimum-wage labour, can constitute force (**PUDR 1982**).
- Exception: compulsory service for public purposes, without discrimination **only on religion, race, caste or class**. Trafficking/forced exploitation is not identical to all consensual adult sex work.
- Laws cited: **Immoral Traffic (Prevention) Act 1956; Bonded Labour System (Abolition) Act 1976**, wage/contract/equal-remuneration frameworks. **Four Labour Codes became effective 21 November 2025**, consolidating 29 laws; distinguish older Acts from the current framework and its transition/savings provisions. Labour Ministry update
- **24:** children **under 14** not employed in factory, mine or hazardous work. Statute goes further: **2016 amendment** renamed 1986 law **Child and Adolescent Labour Act**; general under-14 employment prohibition with narrow family/artist exceptions; adolescents **14–18** barred from hazardous occupations/processes as defined.
- **M.C. Mehta 1996:** employer contribution **₹20,000 per child** to rehabilitation fund and welfare/education directions. **Child Rights Commissions Act 2005:** National/State Commissions and Children's Courts; **2006** prohibited-occupation expansion included domestic/hospitality employment.

14. Religion: 25–28

- **25—all persons:** conscience; **profess** declare belief; **practise** rituals; **propagate** explain/disseminate. Does not authorise forced conversion; protect others' conscience and voluntary choice.
- Limits: **public order, morality, health, other Fundamental Rights**; State may regulate secular economic/financial/political activities and reform/open public Hindu religious institutions as provided.
- Kirpan wearing/carrying recognised for Sikhs. Inclusion of **Sikhs, Jains, Buddhists** as “Hindus” is for the specified institutional-access clause, not a universal religious reclassification.

- **26—denominations:** establish/maintain religious/charitable institutions; manage religious affairs; own/acquire property; administer property according to law. Public-order/morality/health limits apply; wording differs from 25.
- Denomination: common faith/beliefs, organisation and distinctive name; chapter cites **Ramakrishna Mission/Ananda Marga**, and rejects Auroville as such in the cited setting.
- **27:** no compulsory tax specifically appropriated to promote/maintain a particular religion/denomination. Regulation/service fees are not automatically such taxes; not a ban on all public spending touching religion.
- **28:** wholly State-funded institution—no religious instruction; State-administered endowment/trust requiring instruction—exception; recognised/aided institution—no compulsory instruction/worship without consent, guardian for minor.



Religious freedom has provision-specific limits.

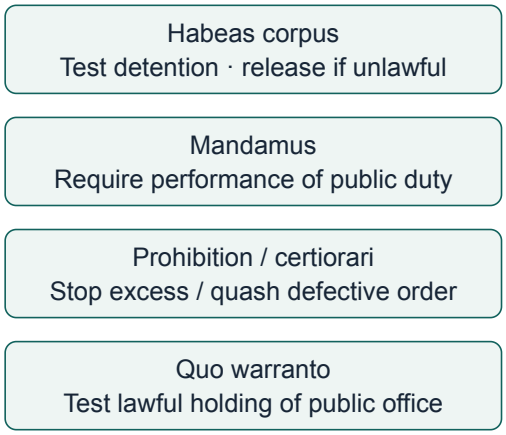
15. Culture and minority education: 29–30

- **29(1):** any section of citizens with distinct language/script/culture may conserve it—**not minority-only**. **29(2):** State-maintained/aided admission cannot be denied only on **religion, race, caste, language**; note different list from 15.
- **30:** religious/linguistic minorities establish/administer institutions of choice; no minority-status discrimination in aid. Constitution does not define “minority”; relevant judicial framework matters.
- **30(1A):** acquisition amount must not restrict/abrogate protected institutional right, **44th Amendment**.
- **Malankara Syrian Catholic College 2006:** choose governing body/staff, admit qualified students, reasonable fees, use assets; **administration ≠ maladministration**.
- General laws and legitimate academic/staff/welfare/financial-accountability regulation apply. Aided status permits proper-aid conditions but does not erase minority character; unaided institutions retain lawful rational selection freedom.
- Recognition/aid distinctions do not put unrecognised institutions beyond ordinary law. Minority institutions may teach in their own language within applicable framework.

16. Remedies and five writs

- **32:** enforcement remedy is itself Fundamental Right; **Ambedkar—heart and soul**. Direct/original SC route for Fundamental Rights; no prior HC appeal inherently necessary. **226:** HC remedies for Fundamental Rights **and other legal rights**; wider subject-matter reach.

- SC/HC jurisdictions concurrent, not SC exclusive. **32** is guaranteed, **226** discretionary; courts still apply procedural/judicial principles. Parliament may empower other courts under **32(3)** without displacing SC powers.
- **Habeas corpus—produce/test custody:** against public/private detainer; illegal detention release. Lawful competent-court custody ordinarily not set aside through this route, but jurisdictional/serious illegality cannot be ignored.
- **Mandamus—we command:** perform public/legal duty; can reach bodies performing public duties under 226, including some non-State bodies. Not ordinarily private contractual obligation; cannot dictate a particular lawful discretionary choice, though can require discretion be exercised lawfully.
- **Prohibition—forbid:** prevent lower judicial/quasi-judicial body's jurisdictional excess while proceedings pending.
- **Certiorari—quash:** defective order/jurisdiction/natural-justice error; can reach relevant administrative decisions. Distinguish ongoing prevention from quashing, without treating simplified timing as absolute.
- **Quo warranto—by what authority:** legality of holding substantive constitutional/statutory public office; any appropriate public applicant, not only personally injured person. Not private employment; chapter's blanket exclusion of “ministerial office” should not be read as excluding constitutional ministers from all review.



32 concerns Fundamental Rights; 226 also reaches other legal rights.

17. Forces, martial law and Parliament's special competence

- **33:** Parliament may restrict/abrogate rights for specified armed/public-order forces, intelligence and connected communications personnel to ensure duty/discipline; State legislature cannot use this power. May include attached non-combatants as legally applicable.
- Examples: **Army/Air Force Acts 1950; Navy Act 1957** (correct chapter's 1950); Police Forces Restrictions Act **1966**, BSF legislation. Restrictions must remain within constitutional/statutory authority; not unlimited exemption from review.
- **34:** parliamentary indemnity/validation concerning acts to maintain/restore order where **martial law** operated. Constitution does not supply a detailed express declaration procedure; Article 34 is not a free-standing unlimited executive military-rule power.
- **Military law:** service-discipline law; **martial law:** extraordinary military administration in affected area; **National Emergency 352:** detailed constitutional declaration on war/external aggression/armed rebellion, affecting federal and fiscal arrangements as well as rights.

- National Emergency can apply nationally/partly and ordinary courts continue. Martial law does **not automatically suspend habeas corpus**; avoid the chapter's unrestricted claims about military punishment of civilians.
- **35:** Parliament's exclusive competence for specified **16(3), 32(3), 33, 34** matters and punishments for Part-III-declared offences (**17/23**); existing laws continue until changed. Not all legislation concerning any right is Parliament-exclusive.

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18. Emergency and rights

- **358:** during National Emergency on **war/external aggression**, Article 19 constraints relaxed within constitutional conditions; **not armed rebellion**. Relevant law must contain emergency nexus recital and executive action be under such law; territorial qualifications apply.
- **359:** President may suspend court enforcement of **specified** rights for specified period/territory; **20/21 excluded**. It is not automatic abolition of every right during every emergency.

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19. Property and protective clauses: 300A, 31A–C

- **300A:** deprivation only by authority of law; **HC 226** remedy, not **32 solely for property**. Ordinary law may regulate, but legislative deprivation is not immune from constitutional scrutiny; lawful public purpose/procedure/compensation principles matter. Do not memorise “no compensation ever guaranteed”. SC: Kolkata Municipal Corporation, 2024
- Special protections: minority educational-institution acquisition **30(1A)**; personal-cultivation land within ceiling **31A**—market-value protection. Amendment history: **1st, 4th, 7th, 17th, 25th, 39th, 40th, 42nd, 44th** in property/protective-law development.
- **31A:** five specified categories—estates acquisition/rights; management takeover; corporate amalgamation; directors/shareholders' rights; mining leases. Limited shield from **14/19**, with President-assent requirement for relevant State laws; not blanket protection against every constitutional ground.
- **31B + Ninth Schedule, 1st 1951:** original **13 laws**; chapter **282 surviving entries**, serials through 284 with omissions/257A. **Waman Rao/Coelho:** post-**24 April 1973** insertions reviewable for basic-structure damage; a rights violation must be assessed in that framework.
- **31C, 25th 1971:** qualifying laws implementing **39(b)/(c)** protected from **14/19** challenges. Court can test whether law genuinely serves those objectives; exclusion of that review invalidated in **Kesavananda 1973**.
- **42nd 1976** extension to **all DPSPs** struck down in **Minerva Mills 1980**; do not reproduce the invalid extension as operative law.
- Rights outside Part III include **265—tax by law; 300A—property; 301—trade freedom; 326—adult suffrage**. Their enforcement route differs from Article 32, unless another Fundamental Right is also involved.

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20. Criticisms, significance and answer structure

- Criticisms: excessive restrictions (**Jaspat Roy Kapoor**); incomplete work/social-security guarantees; technical language (**Jennings—lawyers' paradise**); amendment vulnerability; emergency suspensions; cost of litigation; preventive detention; alleged inconsistent philosophy.

- Balance: basic structure, judicial review, legal aid/PIL and expanded **21/21A** constrain these weaknesses. Constitutional social/economic interests are not wholly absent; some appear in DPSPs/statutes and evolving rights interpretation.
- Significance: democracy, material/moral development, rule of law, liberty, minority/weaker-section protection, secularism, accountable government, social justice, dignity and political participation.
- **Mains:** identify right and beneficiary → explain permissible limits → cite relevant case → distinguish enforceability/exception → evaluate liberty with constitutional public interest.